

1-2. 23CV01439 Linoz, Roberta Jean et al v. Mains'l California, LLC

EVENT: (1) Final Approval Hearing

(2) Status Conference

Plaintiff's Motion for Final Approval of Class Action and PAGA Settlement is GRANTED. A compliance hearing is scheduled for March 17, 2027 at 9:00am. The Court will sign the proposed judgment and order with that modification.

3-4. 25CV02680 JP Morgan Chase Bank v. Magnani, Justine M

EVENT: (1) Plaintiff's Motion for Judgment on the Pleadings

(2) Case Management Conference Calendar

Plaintiff's Motion for Judgment on the Pleadings is GRANTED. The answer admits the balance owed to Plaintiff, and the answer does not deny any of the material allegations in the Complaint. Plaintiff shall prepare an order. Once prepared, the Court will sign the order and judgment. The Case Management Conference is vacated.

5. 25CV03400 Chico Drain Oil Service, LLC v. Munnell, James et al.

EVENT: Demurrer to the Cross Complaint of Black Mesa Fuels, LLC by Cross-Defendant Safety-Kleen Services, Inc. Erroneously Named and Served as Safety-Kleen, Inc.

Cross Complainant Black Mesa Fuels LLC ("BMF") is in Violation of Corp Code 17708.07

Corp Code 17708.07. Validity of acts where foreign company fails to file certificate of registration

(a) A foreign limited liability company transacting intrastate business in this state shall not maintain an action or proceeding in this state unless it has a certificate of registration to transact intrastate business in this state.

[Emphasis Added]

The opposition does not dispute the contention that BMF does not currently possess a certificate of registration. Thus, the question is whether it was “transacting intrastate business” for purposes of the statute.

Corp Code 17708.03. Transaction of intrastate business

(a) A foreign limited liability company that enters into repeated and successive transactions of business in this state, other than in interstate or foreign commerce, is considered to be transacting intrastate business in this state within the meaning of this article.

[Emphasis Added]

The fundamental dispute appears to be whether the business dealings between BMF and Plaintiff constituted multiple successive transactions. BMF appears to contend that the word “transaction” necessarily means contract, and because the Complaint only alleges one contract, there was only one transaction.

Neither side has directed us to any authority as to what constitutes a “transaction” for purposes of the statute. Nor is the Court finding any. The Court concludes it is unlikely the Legislature intended the word transaction to be limited to a contract. Hypothetically, a foreign business could enter into one contract calling for hundreds of shipments. It is doubtful the Legislature intended to exempt that type of regularly occurring business from the requirement to obtain a certificate of registration.

It is more likely that the Legislature intended the word transaction to include multiple deliveries or shipments within a single contract. This would also be consistent with Corporations Code 191(a)(8) which exempts an isolated transaction. The legislative focus seems to be on the frequency of the business conduct and not the legal classification of a contract.

In light of that finding, the pleading alleges successive shipments in March and April 2022. It also alleges that invoices were sent after the shipment. BMF does not appear to dispute those allegations. The shipments in March and April 2022 fall within the category of intrastate business.

Accordingly, the demurrer is sustained with leave to amend. In order to provide BMF with an opportunity to achieve statutory compliance, BMF shall amend and allege facts demonstrating statutory compliance by November 23, 2026. Additionally, a partial stay is issued as follows: discovery will be stayed with respect to Cross Defendant Safety Kleen, Inc. In the event Safety Kleen, Inc. files an answer discovery will be reinstated at that time.

The Court declines ruling on the other issue raised in the demurrer.

Cross Defendant Safety Kleen Inc. shall prepare and submit a form of order consistent with this ruling within two weeks.

6-7. 26CV00449 Layman, Zeke v. Autumn Creek Post Acute et al

EVENT: (1) Demurrer to Second Amended Petition for Alternative Writ of Mandate and Damages

(2) Petition for Alternative Writ of Mandate (Continued)

The demurrer is SUSTAINED WITHOUT LEAVE TO AMEND.

Petitioner Lacks Standing and a Beneficial Interest

What is required to obtain writ relief is a showing by a petitioner of (1) A clear, present and usually ministerial duty on the part of the respondent ... ; and (2) a clear, present and beneficial right in the petitioner to the performance of that duty(*Mission Hospital Regional Medical Center v. Shewry* (2008) 168 Cal.App.4th 460, 478) [Emphasis Added] Under both State and Federal regulations cited in the Petition, it is the patient who is entitled to the benefits of the regulations. Here, Petitioner is not the patient. Nor is the Petitioner requesting relief on the patient's behalf. Consequently, Petitioner lacks standing.

In light of this ruling, the Court declines addressing the other grounds raised in the demurrer. The petition is dismissed with prejudice. Respondent shall prepare and submit a form of order within two weeks.

8. 26CV00885 Russo, Joel Benjamin v. Hellon, Aaron

EVENT: Defendant's Petition to Compel Arbitration

Preliminarily, Defendant's timeliness objection to the opposition is noted, however, the Court will rule on the merits.

On the issue of whether an arbitration agreement exists, the Court finds Defendant has met its burden demonstrating an existence of an agreement based on the April 3, 2018 and July 2019 documents.